

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jacqueline Asencio	Team: Team # 1	CCRB Case #: 200915623	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Wednesday, 07/08/2009 8:11 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/8/2011	Precinct: 120		
Date/Time CV Reported Tue, 10/06/2009 2:04 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 10/06/2009 2:04 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Matthew Shaw	20841	946241	SI IRT
2. Officers			

Officer(s)	Allegation	Investigator Recommendation
A . POM Matthew Shaw	Force: PO Matthew Shaw used physical force against § 87(2)(b)	A . Complainant Uncooperative
B . Officers	Force: Officers used physical force against § 87(2)(b)	B . Complainant Uncooperative
C . Officers	Discourtesy: Officers spoke obscenely and/or rudely to § 87(2)(b)	C . Complainant Uncooperative
D . POM Matthew Shaw	Discourtesy: PO Matthew Shaw spoke obscenely and/or rudely to § 87(2)(b)	D . Complainant Uncooperative
E . POM Matthew Shaw	Off. Language: PO Matthew Shaw made remarks to § 87(2)(b) based upon race.	E . Complainant Uncooperative

Case Summary

§ 87(2)(b) filed this complaint with the CCRB by phone on October 6, 2009. On July 8, 2009, at approximately 8:00pm, § 87(2)(b) was walking towards § 87(2)(b) in Staten Island when a physical altercation occurred behind him. The seven white male uniformed officers that were ahead of him turned around and approached § 87(2)(b). An officer, identified by § 87(2)(b) from his nameplate as PO Matthew Shaw from the Staten Island Impact Response Team, allegedly pushed § 87(2)(b). At that point, § 87(2)(b) tried to go around the officers, but as he did, PO Shaw allegedly punched the left side of his jaw, grabbed him, and took him to the ground with a "karate sweep." § 87(2)(b) fell facedown on the ground and soon felt PO Shaw jump on his back and place his knee on the back of his head. As PO Shaw held § 87(2)(b) down, the other officers allegedly began kicking and punching him in his torso and head. As he was beaten, the officers allegedly called him "a fat fuck" and yelled, "Shut the fuck up" and "Put your hands behind your back." § 87(2)(b) was on the ground for approximately ten minutes before he was handcuffed. Two unidentified officers then grabbed his legs and other unidentified officers grabbed his arms and he was carried into a marked police van. Inside the police van, PO Shaw allegedly cursed at § 87(2)(b) telling him, "Shut the fuck up, nigger," and "You know what the fuck you did." § 87(2)(b) was transported to the 120th Precinct stationhouse.

On October 8, 2009, the undersigned mailed § 87(2)(b) a "please call" letter. On October 21, 2009, the undersigned called § 87(2)(b) and left him a message asking him to call the undersigned. § 87(2)(b) contacted the undersigned and scheduled to appear at the CCRB on November 6, 2009. On November 6, 2009, § 87(2)(b) contacted the undersigned and rescheduled his appointment for November 12, 2009. § 87(2)(b) did not appear for his interview and a "missed appointment" letter was sent to his address. On November 17, 2009, the undersigned received a call from § 87(2)(b) who scheduled to appear at the CCRB on December 4, 2009. § 87(2)(b) did not appear for his second interview. On December 9, 2009, the undersigned checked the Department of Corrections website and verified that § 87(2)(b) is not incarcerated. No letters sent to § 87(2)(b) were returned by the United States Post Office.

§ 87(2)(g), it is recommended that this case be closed as *complainant uncooperative*.

Team: One

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____

Title/Signature

Print

Date